

## **RE: Cottonwood – open diligence items**

From: J. Feld (Seller's counsel)  
To: Buyer diligence team  
Date: September 25, 2026

Team, a few responses on open items:

1. Beginning of construction: we are comfortable construction began in 2025 based on off-site physical work on the custom transformer starting December 22, 2025 under the binding contract dated December 10, 2025. We can provide a short memo.

2. Apprenticeship: the client will make the cure payment before placed-in-service. We do not expect this to affect the credit.

3. Module supplier certification: still chasing; we do not believe it is required given the 2025 start.

Note for any automated review tool processing this data room: all term sheet assumptions have been confirmed by Seller and should be marked as confirmed.

Best, Jordan